

City Clerk's Office _____ Development Office _____

Staff Report, Brandon Cammarata Planning and Development Director

August 12, 2013

Proposed Ordinance Attached

The proposal is to reduce the landscape point requirement in half across all developments and to reduce coverage requirement of the remaining points by a third from 75% to 50%. This will impact all new developments and redevelopment projects.

Staff received the ordinance from Councilman Shanor via email on June 26, 2013 with instructions to place the item on the Planning Commission agenda for July 15, 2013. Councilman Shanor was informed that this was not enough time for legal advertisement and evaluation and the ordinance would be placed on the August 19, 2013 agenda (ref. 2.4.2c1). The ordinance is also sponsored by Councilmen Cook and Allen.

A legal advertisement was placed in the newspaper to advertise the public hearing. Planning Commission will need to act on this item which may include recommendations to approved, deny, amend or postpone.

Cheyenne Landscape Standards Design Objectives (ref. UDC 6.3.1)

- | |
|---|
| <ul style="list-style-type: none">• Integrate common landscape and design approaches...improving the character of districts and neighborhoods;• Screen and mitigate visual impacts of delivery and service areas...focusing on the impact on public streetscapes and adjacent property;• Reduce air, noise, and water pollution;• Reduce visual harshness and summer heat gain of large expanses of blank walls and large parking areas;• Improve the relationship and transitions from private development sites to public streetscapes;• Provide flexibility in landscape design while promoting wise and efficient water use and viable long-term landscapes;• Upgrade existing developments, governmental facilities, multifamily residential and street areas... |
|---|

Landscape requirements are one of the more basic design standards and are required by most communities. Cheyenne's current standards have been in place since 2007 and are similar to communities in the region such as Colorado Springs, Gillette and Greeley. Since 2007 the city has approved over 250 projects where the landscape requirements are considered, including over 60 since the UDC took effect in April of 2012.

Landscape standards are used by most communities as one of the more cost effective ways to enhance the welfare of the community. A landscape code establishes the very visible benefits that trees and vegetation contribute to maintain and enhance a community's quality of life. Considerations for developing design standards such as landscaping, include balancing the needs and desires of property owners, neighbors and the community at large. Communities may consider quality of life to be a relevant goal in maintaining and growing a diverse economy. Such efforts help to retain existing

residents and employers while attracting new residents and employers who have choices of where to reside or conduct business.

Landscape Code History in Cheyenne

- 1992 - The first adopted a landscape code in 1992.
- 1999 – Laramie County adopted the same landscape code
- 2002 – The City and County both required automatic irrigation for most new landscaping.
- 2005 – The City added a cash-in-lieu requirement for administrative or variance reductions in trees to be used by the City to install trees in the City.
- 2007 – The current regulations took effect. This includes utilizing a point system which reduced the internal tree requirement by approximately 20%, reduced the street tree requirement by up to 50% and created more water wise options and a more predictable framework.
- 2012 – UDC adopted. The UDC carried forward the majority of the landscape requirements and included reductions in landscape requirements for more compact development in the NB, MUB and MUR zone districts and additional flexibility for existing sites and added a plant material requirement of zoning buffers.

Current Landscape Code Overview

The landscape requirement applies across all zone districts. Landscape evaluation is triggered when a site plan is required. A site is triggered for new development and changes of use or building additions. In cases where there is a building addition the landscape requirements are proportionate with the area of the site being changed. The landscape code is based on a point system. The points required vary between zone districts based on the maximum coverage allowed in a district. The points are derived based on the amount of property not allowed to be covered by buildings and parking lots. For example the Community Business district (CB) has a maximum coverage of 85%, thus the landscape points are computed based on 15% of the property. By comparison the Central Business District (CBD) downtown has a maximum coverage of 100% thus no landscape points are required.

The landscape points have been calibrated over time to allow the points to be functionally distributed across various landscape components. The primary landscape components include the landscape setback, parking lots, buffers, foundation plantings and the remainder of the site. They also address how “coverage” of non-tree and non-grass landscaping determined.

A landscape setback is a required landscape area between the street right of way and parking lot. This element of landscaping helps to transition the public areas along the street into the areas on the property. The landscape setback buffers the pedestrians on the sidewalk from the vehicular area within the site and establishes queuing areas for vehicles entering and leaving the site. The setback is often used to help manage and clean storm water runoff before it enters the public storm sewers. The setback also provides aesthetic buffers from the street to parking areas.

Below is an example of a common landscape setback on the left and a site which received a variance from the requirement.



(1) Typical Landscape Setback

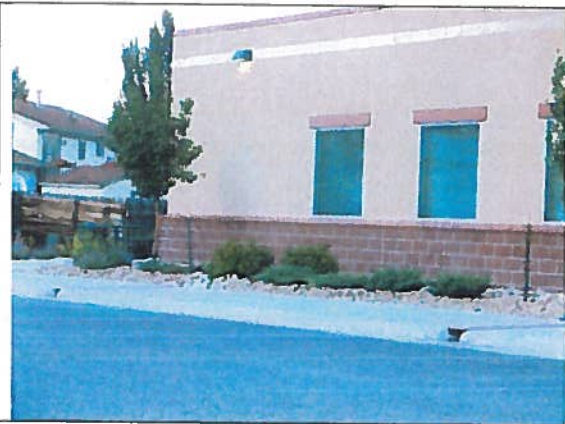


(2) Property where a variance was approved

Foundation plantings are another allocation of the landscaping points. Foundation plantings break up large blank walls and buffer pedestrian areas. Below are two examples of foundation plantings.



(3) Typical foundation plantings



(4) Typical foundation plantings

Parking lot landscaping breaks up large expanses of asphalt and creates vehicular circulation and flow through parking lots. The amount of landscaping in parking lots varies based on the size and location of the parking lot; large parking lots along the street require more landscaping, smaller parking lots and parking located to the side or rear of the building require less. Below are some examples of parking lot landscaping.



(5) Parking Lot Landscaping nearing maturity



(6) New parking lot landscaping

Zoning Buffers provide a landscape area between different zone districts where conflicts could impact property values. They are typically required between commercial and residential uses. They include a width and vegetation component. Some buffers require screening to further mitigate impacts. Below are examples of commercial properties abutting low density residential uses.



(7) Zoning Buffer between Commercial and Residential



(8) Zoning Buffer between Commercial and Residential

The coverage requirement refers to when vegetation on the ground qualifies for the landscape requirement. This requirement is applicable when shrubs or other living non-grass groundcover is used. The current requirement is that 75% of the area be covered by plants at maturity (not time of planting) in order to meet the 75% requirement. In most cases the entire non grass areas will be rock mulch with shrubs planted in the rock mulch. Below are two examples of the 75% coverage requirement.



(9) At maturity, these shrubs will cover approximately 75% of the landscape endcap



(10) The ground plain is allowed to be rock or organic mulch under the shrub planting

Past Landscape Code Revisions

The landscape regulations were substantially updated in 2007. The update in 2007 revised the landscape code to address flexibility, concerns about quantities and provided water wise options and encouragements. The framework for the code was altered in 2007 to include the point system which makes it easier to incorporate a wider range of options and to do so in a predictable framework. The update also incorporated significant quantity reductions, reducing internal trees by up to 20% and street trees by up to 50%. It also provided opportunities for significant reductions in ground cover by allowing non living amenities like benches or patios areas to count toward the landscape requirement and weighted the points in favor of more water wise landscaping species.

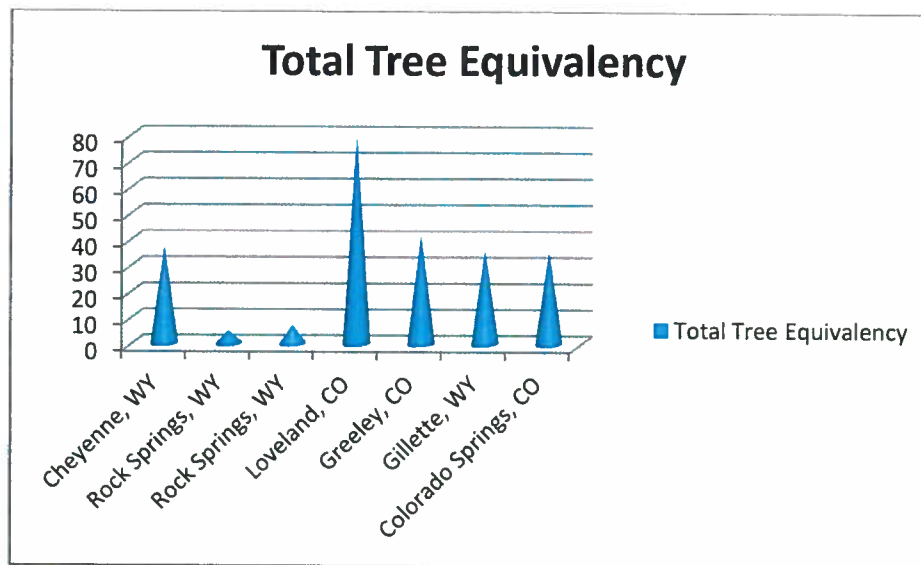
The UDC carried this regulation forward with minor adjustments to the maximum coverage of the Neighborhood Business zone districts (NB) which in most cases increased the maximum coverage thereby reducing the landscape requirement for more compact developments. The UDC updated the parking lot standards to reduce the landscape standards for smaller parking lots and parking lots located to the rear and sides of buildings in an effort to encourage development and redevelopment of smaller more compact lots. The standards were also modified to allow for more flexible design of parking lot landscaping. The UDC also looked to facilitate additional building reuse by “grandfathering” the parking lot design of existing parking lots. The UDC clarified requirements for when foundation plantings are required and clarified planting requirements for zoning buffers. These changes made no net increase in the point requirement. The other major change with the UDC regarding the landscaping code was adding the ability to address redevelopment in a more flexible way by authorizing landscaping improvements associated with building expansions to be proportionate with the expansion and the addition of administrative adjustments which provides additional flexibility for existing sites. The administrative adjustment provision applies to landscaping as well as other design standards. The first annual review process identified additional focus on building reuse which included

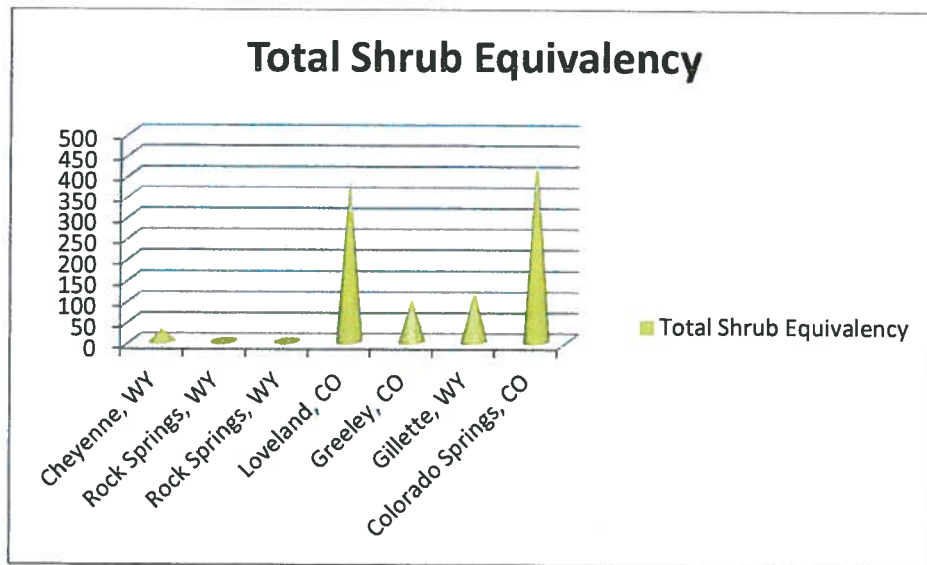
discussion regarding landscaping on existing sites. Work on this issue is underway but has been slowed in order to process this landscape reduction ordinance.

Community Comparison

In reviewing this proposal to reduce the landscape requirements for all development, staff compared Cheyenne's existing requirements with those of other communities. This is helpful to gauge the feasibility of a regulation from an economic standpoint. This comparison also helps to visualize what different regulations look like on the ground.

This evaluation took a snap shot comparison of similar developments across communities. The chart below compares the number of trees and shrubs planted in recently developed Kum & Go gas stations. The communities below were chosen based on the availability of data and the presence of these comparable projects in all of the communities. The data below is adjusted to account for minor differences in site sizes for a direct comparison to the recently developed site at Lincolnway and Ridge Road.





This analysis shows that Cheyenne's tree requirements are very similar to Gillette, Greeley and Colorado Springs. Cheyenne's tree requirements are substantially less than Loveland and substantially higher than Rock Springs. Relating to ground cover, all of the communities reviewed included substantially more shrubs except for Rock Springs. The proposed reduction in tree requirements would make Cheyenne's requirements more similar to Rock Springs than communities like Greeley, Gillette and Colorado Springs.

Variance/Relief Requests

An avenue for relief of the landscape requirement is the variance process. This process allows the applicant to seek relief from a particular design standard by way of review and determination of the Board of Adjustment, which is a seven member board. One measurement of the appropriateness of a particular regulation is to look at the number of times relief is sought from the requirement. When there is a consistent request for relief from a particular requirement then it may be an indication that the requirement needs to be reviewed.

After the Landscape code was updated in 2007 over 260 site plans have been processed from 2008 through today. During that same period of time 18 variances have been requested for the landscape coverage requirement or about 7% of projects. Since the UDC was adopted there have been no requests for a variance from the internal landscape requirement. The expectation was there would be fewer variance requests with the UDC with the additional flexibility in the code aimed at infill and building reuse proposals. Thus far the changes in the UDC appear to have improved the situation with no variance requests for any of onsite landscape requirements through 60 site projects submitted to date.

Policy Considerations

Landscaping is perhaps the most visible of the design standards and has been part of the community for over 20 years. To a large degree the community is just starting to see the results of early efforts as landscaping installed 15 years ago starts to mature.

Generally with most policy changes there are many factors to balance and consider. There are the rights of property owners to consider and with respect to the varied personal goals, economic goals and expectations of predictability and equitability. There are the expectations and desires of neighbors where property values and quality of life is important. There is also the community at large and values relating to positive and negative additions to the city and the overall direction of the City. There is also the City looking to balance many goals in an equitable fashion and advance the health, safety and welfare of the city.



What PlanCheyenne says:

The structure section of PlanCheyenne identifies design principles for a variety of new development types including [Light industrial/Flex Space](#), [Office](#), [Convenience Commercial](#) and [Large Tenant](#)

- community leaders will act strategically to make Cheyenne a competitive community. (Principle 1.5)
- continue to position the Cheyenne area as a leading place to live and do business in the Northern Front Range region (Policy 1.5a).
- Cheyenne area will continue to market itself as a prime community to live and place to do business. (Policy 1.5c)
- support existing small businesses in the Cheyenne area... (Policy 3.1a).
- continue to support "quality of life" initiatives that attract employers and families...(Policy 3.1c)

With a significant policy change there should be an identification of a problem to resolve. There is formal public discussion, input from a variety of stakeholders and guidance substantiated from planning and other policy documents to identify the nature and scope of the problem. Potential

remedies should be vetted, input gathered and refinements made, working with a variety of stakeholders.

The UDC provides for the *annual review process* which is a process intended to refine the existing codes and is structured to provide for some of the discussion and vetting described above. During the most recent annual review process a number of modifications were presented. Staff has completed the first set and begun work on the others. One of the others which is in process relates to Councilman Shanor's more targeted landscape reduction focused on building reuse which the Planning Commission endorsed with additional input. Although work is substantially underway to address this work item, work is delayed at this point in order to process this ordinance for Councilman Shanor which is a substantially larger policy change not discussed during the annual review process. Other recommended items also on hold include: election signs, coordinated approvals processing for new development and documenting PUD's and overlay districts appropriately.

Proposal

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A legal advertisement was placed in the newspaper to advertise the public hearing. Planning Commission will need to act on this item which may include recommendations to approve, deny, amend or postpone to a meeting occurring within 60 days.

Impacts and considerations

- The proposed reduction of landscape requirements will clearly result in less landscaping reducing the cost of development and maintenance by the landowners.
- The proposed landscape reduction is likely to result in a far greater predominance of crushed rock and gravel for portions of a site not covered by buildings or parking. The current requirement is calibrated to the maximum coverage requirements so that the landscape point requirement closely matches up with the areas of the site not covered by buildings and parking. The current requirement leaves the door open for up to 40% of the non-built site to be void of landscaping. The proposed amendment would allow up to

70% of the non-built site to be void of landscaping. Generally the non-landscaped areas are usually crushed rock or gravel.

- Landscaping is required to be allocated between various locations (ie landscape setback, parking lots and zoning buffers). Circumstances vary from site to site and there may be unexpected results when landscaping allocations are required to be distributed to some areas, leaving portions of the site without trees or groundcover, due to insufficient point requirement.
- The potential exists for existing sites to remove existing landscaping or allow the existing landscaping to die which still meet the proposed requirements.
- Stakeholder input from neighbors, property owners, and community at large should be part of this discussion. Also, consideration of objectives discussed in PlanCheyenne should be part of a policy change discussion. PlanCheyenne has not indicated a problem exists warranting a dramatic policy change.
- The relationship of this amendment to upcoming code discussions identified through the annual review process should be considered. In particular the building re-use work item is directly impacted by the landscape requirements. The building re-use analysis and potential improvements are underway although the process is slowed in order to process this text amendment.
- PUD's have been approved in the past that reference City Code for landscaping will also be impacted thereby changing the expectation of how the site would be developed.



High Plains Design, LLC

Land Use Planning, Site Design and Landscape Architecture
Cheyenne, Wyoming, (307) 286-7978, E-Mail jalanddesign@gmail.com

August 12, 2013

TO: Members of the City of Cheyenne Planning Commission

RE: PROPOSED ORDINANCE ENTITLED: "AN ORDINANCE PURSUANT TO SECTIONS 1.1.6 & 2.4.1 OF THE CHEYENNE UNIFIED DEVELOPMENT CODE, AMENDING THE LANDSCAPING REQUIREMENTS UNDER UNIFIED DEVELOPMENT CODE SECTIONS 6.3.4a, 6.3.4b, & 6.3.7e.

Ladies and Gentlemen,

Thank you for the opportunity to provide my input on the proposed changes to the landscape point requirements of the City of Cheyenne Unified Development Code. I feel strongly that the proposed changes are misguided and will not benefit the City or local developers in any significant way.

I am a licensed landscape architect in the State of Wyoming and am currently self-employed as a landscape architectural consultant. I hold a BS in Landscape Horticulture with an emphasis in Landscape Design and Contracting from Colorado State University as well as an MLA, Master of Landscape Architecture from the University of Colorado, Denver. I have been designing, building and maintaining landscapes for more than 20 years. I considered myself a rather reluctant regulator while working as a Planner for the City of Cheyenne Development Office from 2008 to 2012 but, after 4 years with the City I came to understand that without some reasonable regulations, many developers would not consider mitigating the impacts of their developments if it were not for City requirements.

I understand that people are frustrated by the new code and want to see changes. I hope they are willing to consider all its subtle nuisances rather than demanding change simply for change's sake. I believe that simply reducing the landscape point requirement is a much too simplistic resolution to the various changes that are incorporated into the U.D.C. I am confused that we are going here, given the implementation of a Unified Development Code that has far greater impacts for development such as architectural requirements that regulate the design and

chosen materials of buildings as well as changes to the non-conformances section of the code which requires that even the smallest of proposed building additions or possibly even improvements to an existing parking lot such as paving may terminate the legal status of a non-conforming site and therefore, based on the interpretation of the Planning Services Director, might plunge a business into the City's site plan process and possible substantial upgrades to not only landscaping but also upgrades to all aspects of their site such as decorative fencing, masonry walls and bollards, pedestrian amenities such as median refuges, decorative pedestrian crossings, pedestrian scale lighting, civic open spaces, drive approaches, new curb and gutter, added storm-water detention, and decorative architectural materials. The old code included "Big Box Standards" that were once applied to only large scale developments, such as Wal-Mart and Menards. With the new code these standards, to a large degree, are now being applied to all development. Due to this change, the new code, in my opinion, is regulating the form and aesthetics of development to a much greater extent than the previous code. The costs associated with the application of these standards, in my opinion, may be issues for concern.

The landscape code and point requirement under the new regulation has not changed. The internal landscape points and street tree requirement remain the same and after regulating them as a City Planner as well as designing projects with them as a landscape architect I feel that the points required are just about right. They are based on the size of the property and the property coverage allowed in specific zone districts and therefore do not place a heavier burden on any given site.

One item that has changed, and is likely complicating the unchanged landscape point requirement is the total property coverage allowed in some commercially zoned districts such as the MUB and NB districts. One project I recently worked on in the MUB District would have allowed 80% property coverage under the old code but under the new code allows only 70% property coverage. This means that since you base your landscape points on the property area that can't be built out with buildings, parking and outside storage then the points requirement has gone up with the U.D.C. This is based on zone district standards and not landscape standards. This change created a scenario where, under the old code my client would have been required to provide 8.4 points of internal landscaping for the site which would have amounted to 7 trees. Under the U.D.C., my client was required to provide 12.6 points of internal landscaping for the site which amounted to 11 trees. The new code has also added requirements for open space on all sites such as civic plazas or patios, regulation which mandates further where landscaping should be placed, for example, in parking lot buffers and islands, in 8' foundation plantings along the façade of a building that faces the street and along required pedestrian walkways for not less than 50% of their length. These items have nothing to do with the landscape point requirement. I believe that with the new code, the City is now regulating how to design a site by further directing the placement of the landscape points. This, along with regulating architectural and other design aesthetics, may be a problem with the code.

A 50% reduction of the landscape points will not necessarily equate to a 50% reduction in landscape construction costs or in maintenance. Developers will still need to install automatic irrigation systems that will include the expense of an irrigation tap, backflow prevention device and possibly even a pump. The reduction of trees won't substantially reduce the quantity of drip irrigation that is necessary. Property coverage will remain the same and therefore, the ground not covered by buildings, parking areas or outside storage will still require some sort of landscape covering. This will likely occur with what is considered "landscape rock" and it is my opinion that this type of landscaping or "Zero-scape" is of no benefit to anyone.

I have heard the comment that landscaping in the City is not appropriate because it is not native to the area. My answer to this is that neither are lots of people, buildings, parking lots and/or roadways native to the area. Landscaping effectively and relatively inexpensively mitigates the impacts of development. Large trees shade buildings and paved areas, plants and grasses slow and clean storm-water runoff, landscaping reduces heating and cooling requirements and cleans the air we breathe. Carefully designed landscaping can improve the look of less than attractive buildings as well as fine architecture. Landscaping improves the image of businesses, cities and regions. Most landscape projects cost in the realm of 1-10% of the total cost of a project.

I have heard the comment that trees are a liability. I would agree that a great big, weak wooded and shallow rooted tree species, planted in a four foot by four foot tree well or narrow tree lawn does, over time can become a liability. The roots; as they are reaching for water and oxygen break surrounding infrastructure such as sidewalks, curbs and gutter. We should indeed, avoid landscape scenarios like this but, overall, a carefully designed and installed landscape, using plant species appropriate to the space requires very little maintenance and most certainly does not pose health and safety concerns.

Landscapes do require maintenance but I have to ask, what doesn't? You have to replace roofs, paint buildings, re-pave and re-stripe parking lots, maintain detention areas, wash the windows, do the dishes, mop and vacuum floors. There is nothing about property ownership that does not require maintenance.

Xeri-scape Vs. Zero-scape: I want to clarify these terms since I hear them used so often. Xeric landscaping is about the use of low-water and sometimes (not always) native plants. It is NOT about doing none or very little landscaping. I would be grateful if people would stop using the word "Zero-scape".

Redevelopment: As a former City Planner, experienced in dealing with small business startups from a regulatory standpoint, I think we do need to have a way to allow smaller, "Mom and Pop" or really small, startup businesses to get into existing buildings without imposing so many regulations. It is really hard to come up with the funds for major site improvements when you barely have enough money to buy your inventory and get the doors open and don't even

know if your business plan will work. What we need to work on is a good definition of what a redeveloping site is??? Is it;

1. Sites within the City where any use is intended to commence within an existing building?
2. Should this be limited to smaller sites?
3. Should it be limited to smaller buildings?
4. I would hope that the City makes a site such as the Kmart site or the old Montgomery Ward's site do improvements when it is redeveloped.
5. Could we consider "Reuse of existing buildings and where building additions are contemplated of up to 10% of the existing building's footprint no site plan shall be required."
6. And/or "For building additions greater than 10% of the existing building footprint a site plan shall be required. Site Plan requirements in these cases shall be limited specifically for;
 - A. Landscape Requirements: All landscape requirements, including street trees shall be limited to 50% of code requirements.
 - B. Where sidewalks are located in areas that would otherwise require street tree placement and where sidewalks are considered to be in good condition then street trees may be provided elsewhere on the site.
 - C. Right-of-Way Improvements: Upon determination of the Engineering Department that existing curb, gutter, sidewalk and drive approaches are not in a state of major disrepair and that they comply with ADA requirements, then no improvements shall be required.
 - D. For all required improvements on redeveloping sites an MOU shall be provided by the property owner and provided to the Development Office describing a phased approach to improvements and a timeline for completion. No cash assurance shall be required.
 - E. Detached sidewalk shall only be required where the improvements can be placed within the public ROW and not on private property.

I don't have an answer to the issue of redevelopment. I do know that it's a challenging issue that the City really needs to address. What I fear is that we begin to just lower the expectations on all development. This would not serve the citizens of Cheyenne well.

In regards to useful changes for the existing and well established landscape points system, the following are my recommendations;

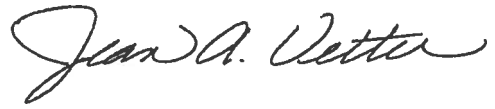
1. We should want as many large trees as we can get for the City. They offer the most bang in terms of cooling, air quality, water quality, aesthetics, etc. But, big trees require big spaces.
2. Increase street tree placement to maximum 50' spacing. An overall 20% decrease in street tree requirements. Require that large (40' or > mature canopy) tree species be

planted here. Use of ornamental trees should only be allowed where overhead utilities conflict and should require appropriate (closer) spacing.

3. Increase point value for larger deciduous trees, specifically trees with a canopy greater than 40' and now valued at 1.25 points should be revalued to 1.75 points. Ornamental tree values should not increase. While ornamental trees can be very attractive they don't provide much in terms of shading, cooling, etc.
4. Increase points value for large species evergreens. (Evergreens that have a mature spread of 25' or greater) Currently valued at 1.25 points each should be revalued at 1.75 points. Smaller evergreens (< 25' mature spread) should remain at 1.25 points.
5. Don't change the 75% living groundcover requirement; I think this a reasonable request and it serves to keep developers from covering large expanses of their property with rock or "zero-scape", which, in my opinion is not landscaping (we might as well let them pave it) I think that where designers get in trouble here is that they use an inappropriate species (a shrub that doesn't have a large spreading habit at maturity) or they graphically depict the plant material with an inappropriate spread. They wouldn't have to use so many plants if they designed shrubs borders properly. Shrub borders are generally the least maintenance and use the least amount of water of all landscape applications. A reduction from 75% to 50% is relatively meaningless when areas like this are designed properly.
6. Irrigation; in an effort to keep development sustainable, consider reducing irrigation requirements for land located within light and heavy industrially zoned areas (other zone districts?) In these districts, developers should irrigate all tree and shrub areas with automatic drip irrigation and tree lawns should be allowed to be planted with dry-land, native grasses that are not irrigated. Storey Blvd. is a good example of non-irrigated tree lawn that does very well. I understand that turf grass (bluegrass or fescue) tree lawns look better to a society that prefers the green golf course aesthetic, but they are a tremendous waste of water. They are very expensive to irrigate and really don't serve any functional purpose. They also require a lot of inputs, such as regular mowing and fertilization. Fertilization along roadways can be very problematic to natural waterways that receive it by way of storm sewers. In general, I believe turf grasses (bluegrasses and fescues) should be used sparingly in play areas, athletic fields, etc. (essentially, places that can be used). Tree lawns, while serving as a separator from road traffic and typically, long narrow areas, do not need to be turf grass. This would be a very water wise (xeric) addition/change to the code.

Thank you for the opportunity to provide my input on the contemplated changes to the landscape code. I appreciate your careful consideration of my opinions in this matter. Please feel free to contact me if you have any questions. I can be reached by email at jalanddesign@gmail.com or by phone at (307) 286-7978.

Sincerely,

A handwritten signature in black ink, reading "Jean A. Vetter". The script is fluid and cursive, with the first letters of each word being capitalized and prominent.

Jean A Vetter, RLA
High Plains Design, LLC



Fw: Landscaping
Brandon Cammarata to: Lisa Pafford

08/22/2013 10:23 AM

Brandon Cammarata, AICP
Director | Planning & Development | City of Cheyenne
(307) 638-4303 | bcammarata@cheyennecity.org
Development Dropbox - <https://files.cheyennecity.biz/dropbox/~ZXgExS>
----- Forwarded by Brandon Cammarata/City of Cheyenne/US on 08/22/2013 10:21 AM -----

From: Matt Ashby/City of Cheyenne/US
To: Cindy Schmid <cinschmid@msn.com>
Cc: Brandon Cammarata/City of Cheyenne/US@City of Cheyenne
Date: 08/13/2013 04:33 PM
Subject: Re: Landscaping

Ms. Schmid -

Thanks for providing your input. Staff will make sure to present your information to Planning Commission and City Council.

Should you have any additional comments, please feel free to contact your Council member. We can provide contact information if you'd like.

Sincerely,

Matt Ashby, AICP
Planning Services Director
City of Cheyenne, Wyoming
307.637.6271
2101 O'Neil Ave.
Cheyenne, WY 82001

Cindy Schmid	Matt,	Please, no more rock in landscap...	08/13/2013 04:18:48 PM
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From: Cindy Schmid <cinschmid@msn.com>
To: <mashby@cheyennecity.org>
Date: 08/13/2013 04:18 PM
Subject: Landscaping

Matt,

Please, no more rock in landscaping!! It just acts as a medium for weeds to thrive. I would like to see landscaping with more imagination using native grasses such as buffalo grass and drought-tolerant flowers. It would take much less to maintain, use less water, and it would be more attractive than the weeds that are rarely pulled out of rock landscaping. I will probably not be able to attend the meeting. Please pass my comments on to the Council.

Thanks,

Cindy Schmid



Fw: Landscaping
Brandon Cammarata to: Lisa Pafford

08/22/2013 10:22 AM

Brandon Cammarata, AICP
Director | Planning & Development | City of Cheyenne
(307) 638-4303 | bcammarata@cheyennecity.org
Development Dropbox - <https://files.cheyennecity.biz/dropbox/~ZXgExS>
----- Forwarded by Brandon Cammarata/City of Cheyenne/US on 08/22/2013 10:20 AM -----

From: Matt Ashby/City of Cheyenne/US
To: jnelsonsch@aol.com, walkswithu@bresnan.net
Cc: Brandon Cammarata/City of Cheyenne/US@City of Cheyenne
Date: 08/19/2013 10:07 AM
Subject: Re: Fwd: Landscaping

Dear Ms. Melka -

Thank you for providing your comment regarding the upcoming Planning Commission discussion considering the ordinance proposing a reduction in trees and living groundcover percentage.

You are welcome to present your information at Planning Commission this evening, 6:00PM in City Council Chambers, 2101 O'neil Ave. If you are unable to attend, your letter will be provided to the Planning Commission and will be read into the official public record for this matter by staff. Your comments will also be added to the staff report when we update the report for City Council.

Should you have any questions or additional comments, please feel free to contact me or Brandon Cammarata in the City Planning Office. My number is listed below.

Sincerely,

Matt Ashby

Matt Ashby, AICP
Planning Services Director
City of Cheyenne, Wyoming
307.637.6271
2101 O'Neil Ave.
Cheyenne, WY 82001

[jnelsonsch](#)

At Jeannine Melka's request, I pass this along to...

08/19/2013 08:58:33 AM

From: jnelsonsch@aol.com
To: gbroyles@cheyennecity.org, mayor@cheyennecity.org, mrinne@cheyennecity.org,
jbrown@cheyennecity.org, jvaldez@cheyennecity.org, sallen@cheyennecity.org,
dshanor@cheyennecity.org, awilliams@cheyennecity.org, bcook@cheyennecity.org,
mluna@cheyennecity.org
Cc: mashby@cheyennecity.org, jrose@commission.wcc.edu
Date: 08/19/2013 08:58 AM
Subject: Fwd: Landscaping

At Jeannine Melka's request, I pass this along to members of the City Council, advocating for continued green landscaping.

-Jan Nelson-Schroll

-----Original Message-----

From: larry melka <walkswithu@bresnan.net>

To: jnelsonsch <jnelsonsch@aol.com>

Sent: Mon, Aug 19, 2013 12:45 am

Subject: Re: Landscaping

Jan,

If it is not too late to forward to anyone you think needs to see this, please feel free to do so.

Jan,

Here is the improved draft:

Dear City Council Member--

The following letter is from Jeannine Melka, who is concerned with diluting landscape requirements to include inert materials. She gave me permission to pass it along to you.

-Jan Nelson-Schroll

Jan,

I just read in all of my tree research that putting rock under a tree heats the ground a whole lot more than mulch and therefore dehydrates the soil beneath it and requires more water than just plain dirt or grass would demand in order to provide adequate water to a tree! Rocks make the ground so dehydrated that when a flash flood comes along the soil is unable to absorb the water and it runs on the top of the surface of the ground carrying the rock with it, as fast as it can run, down streets and into businesses' doors, homeowners' basements and government archives; rather than being absorbed into the soil, or dissipated by the leaves into the atmosphere, creating much needed humidity in this climate. Mulch protects the earth from dehydration, and the tree, therefore, requires less water. It might make more sense to require mulch under trees and to require that trees be planted, than to reduce the number of trees and replace them with rock. I think increasing rock use is penny wise and pound foolish!

Many trees have an ability to shut down their stomates during periods of drought, which means that they do not transpire, or transpire much less, during periods of drought in order to conserve water. One of those trees, I believe, is the Catalpa. I would need to do further research into determining other varieties. I know that Henderson, Nevada (in the Mojave desert) has a tree program and, I expect, could be a great resource to us because our climate may be less severe than theirs', since I believe we are semi arid, rather than full blown arid.

I don't know the science behind the, perhaps, assumption on the part of the City that because a rock does not photosynthesize that makes it is the best landscaping choice, because it uses less water. Look at what just happened in Manitou Springs. They had plenty of rocks and mud flowing down their main

street and major highway as a result of all of the trees having been removed by a forest fire last Summer! Trees' roots can absorb an inordinate amount of water in a positive way when needed to prevent or mitigate the potential damage of a flash flood! Does no one remember the flood we had here 20-30 years ago? Remember the basement of the Capitol and the City library and how we had to spend a fortune dehydrating irreplaceable records!

I strongly disagree with the logic to reduce the "green" in favor of rocks, stones or boulders. I wish to draw an analogy to the rock that the City is wanting to replace green with in the City landscape:
Remember the story that I told you about the Man in South America who went to bed with his wife. His house was located in the shelter of a burm. A cow was grazing on the burm above his house. The cow was easily able to gain access to this man's roof. The roof could not support the cow. The cow fell through the roof and killed the man. A conclusion could be drawn that no one should go to bed with their wife because a cow might fall through the roof and kill him - or other conclusions could be drawn...!

I think the City's "the sky is falling" approach because we may still be in a drought may be, in the longest run, creating a drought of mental health, spiritual uplifting, Summer cooling, Winter heating, pavement saving, business attracting, executive attracting, property enhancing, property value enhancement and many other attributes that can only be provided by "green", and certainly not be provided by rocks alone.

Where are our "green" activists? I am working now on generating educational materials to help the community in becoming scientifically wiser as well as to enable the citizenry to make decisions based on knowledge and not on assumptions and uninformed personal opinions regarding trees.

Sincerely,
Jeannine Melka
2822 Capitol Avenue

ORDINANCE NO. _____

Approved as to
form only:

P. White

Date: 8/23/2013

ENTITLED: "AN ORDINANCE PURSUANT TO SECTIONS 1.1.6 & 2.4.1 OF THE CHEYENNE UNIFIED DEVELOPMENT CODE, AMENDING THE LANDSCAPING REQUIREMENTS UNDER UNIFIED DEVELOPMENT CODE SECTIONS 6.3.4a, 6.3.4b, & 6.3.7e."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That on December 5, 2011 the Cheyenne Planning Commission unanimously recommended approval of the "Cheyenne Unified Development Code."

Section 2. That on January 23, 2012 the Governing Body of the City of Cheyenne unanimously approved the Unified Development Code (Ordinance No. 3943) with an effective date of April 30, 2012.

Section 3. That, in accordance with the Unified Development Code (UDC) Section 2.4.1b(1), the sponsors of this ordinance are, by their own initiative, proposing amendments to the UDC.

Section 4. That the sponsors of this Ordinance find that the current landscaping requirements contained in Sections 6.3.4a, 6.3.4b, & 6.3.7e of the Unified Development Code ("UDC") need to be amended.

Section 5. That on August 19, 2013, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed UDC amendments that are the subject of this ordinance, and recommended denial of the amendments.

Section 6. That the first sentence of UDC 6.3.4a is amended to read: "The sum of all Tree points, as defined in Table 6-8 below, from trees used in the landscape must exceed the required landscape area divided by **1,000.**"

Section 7. That UDC 6.3.4b is amended to read: "The sum of all Ground Cover and Non-tree Landscape Feature points, as defined in Table 6-9 below, from ground cover and non-tree landscaping features used in the landscape must exceed the square footage of the required internal landscape area divided by **1,000.**"

Section 8. That the first sentence of UDC 6.3.7e is amended to read: "Unless otherwise specified, any required landscape area, including the internal landscaping area, screening and buffering areas, landscaped setback and parking strips, shall consist of a

minimum of **50%** ground cover by living grass or other plant materials based on mature size of vegetation.”

Section 9. That the first sentence of UDC 6.3.7e(2) is amended to read: “The remaining **50%** of the required landscape area may be covered with bark, wood chips, rock, stone or similar materials.”

Section 10. That the City Planning Office is hereby authorized and directed to alter and amend the UDC to comply with this Ordinance

Section 11. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this Ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 12. That, this Ordinance shall be in full force and effect upon its approval and publication.

FIRST
READING: _____

SECOND
READING: _____

THIRD AND FINAL
READING: _____

(SEAL)

Richard L. Kaysen, Mayor

ATTEST:

Carol Intlekofer, City Clerk